

25CV07884 Augustine Munoz et al vs RBP Carpinteria OP LLC et al

County: santa-barbara

Division: Civil Law & Motion

Department: 5 SB-Anacapa

Hearing date: 2026-08-31

Motion: 1. Motions to Compel (14); 2. Motion: Leave to File First Amended Complaint; 3. Motion: Protective Order

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Tentative Ruling: Augustine Munoz et al vs RBP Carpinteria OP LLC et al

Case Number

25CV07884

Case Type

Civil Law & Motion

Hearing Date / Time

Mon, 08/31/2026 - 10:00

Nature of Proceedings

1. Motions to Compel (14); 2. Motion: Leave to File First Amended Complaint; 3. Motion: Protective Order

Tentative Ruling

Augustine Munoz, etc., et al., v. RBP Carpinteria OP, LLC, etc., et al.

Case No. 25CV07884

Hearing Date: August 31, 2026

HEARING: (1) Motion of Plaintiffs for Leave to File First Amended Complaint

(2) Motion of Defendants for Protective Order

(3) 14 Motions to Compel Depositions

ATTORNEYS: For Plaintiffs Augustine Munoz, by and through his successor in interest, Robert Munoz, Jeanette Munoz, Judy Morelli, Robert Munoz, and Suzie Dealba: Edward P. Dudensing, Jay P. Renneisen, Stephanie A. Johnson, Dudensing Law

For Defendants RBP Carpinteria OP, LLC, Mallard Senior Living Management, LLC, RBP Communities, LLC, Robert Blake Parsons, Robert M. Shetler, and Ryan R. Test: Rima M. Badawiya, Mark A. Shadrack, Lewis Brisbois Bisgaard & Smith LLP

TENTATIVE RULING:

The unopposed motion of plaintiffs for leave to file a first amended complaint is granted. Plaintiffs shall file and serve their first amended complaint, in substantially the same form as attached to the motion, on or before September 15, 2026. The plaintiffs' request for an award of monetary sanctions set forth in the notice of motion is denied.

The hearings on all other motions are continued to November 2, 2026, at 10:00 a.m. The case management conference now set for that date at 8:30 a.m. is reset to 10:00 a.m. to be heard concurrently with the motions.

The parties are ordered to meet and confer as set forth herein and to file a joint report (preferred) or to file and serve separate reports (if necessary) on or before October 12, 2026, with responses to separate reports (if necessary) filed and served on or before October 19, 2026.

Background:

On December 15, 2025, plaintiffs Augustine Munoz, by and through his successor in interest, Robert Munoz, Jeanette Munoz, Judy Morelli, Robert Munoz, and Suzie Dealba filed their original complaint in this action asserting nine causes of action against defendants RBP Carpinteria OP, LLC, Mallard Senior Living Management, LLC, RBP Communities, LLC, Robert Blake Parsons, Robert M. Shetler, and Ryan R. Test. The causes of action arise out alleged injuries to, and eventual death of, Augustine Munoz at a residential care facility.

On March 27, 2026, defendants filed their answer to the complaint, generally denying the allegations thereof and asserting 18 affirmative defenses.

On June 8, 2026, defendants filed their motion for a protective order. The motion states that plaintiffs have noticed approximately 60 depositions, including 12 persons most qualified depositions covering 117 topics and 508 document requests. (Shadrack decl., ¶¶ 2-35.) The motion for protective order seeks to place limits on the depositions noticed by plaintiffs.

On July 27, 2026, plaintiffs filed 14 motions to compel depositions. The motions are opposed.

On July 31, 2026, plaintiffs filed their motion for leave to file a first amended complaint. On August 18, 2026, defendant filed a notice of non-opposition to plaintiffs' motion.

Analysis:

(1) Motion for Leave to Amend

The motion for leave to amend is unopposed and will be granted. The court notes that the notice of motion requests an award of monetary sanctions. This request is not discussed in the memorandum in support or in the supporting declaration; the request for monetary sanctions will be denied.

(2) Discovery Motions

The court will continue the hearing on the motion for protective order and motions to compel depositions to be heard with the case management conference on November 2, 2026, at 10:00 a.m. The time of the case management conference is reset for that date to 10:00 a.m.

The parties are ordered to meet and confer, in person or by video conference, to discuss a discovery plan for this case. The court contemplates a discovery plan that includes the sequencing of written discovery, document production, and depositions. Understanding the parties' respective positions as to the need for, or absence of need for, particular discovery, the court contemplates that initial discovery will be focused on core issues and be sufficient to determine the need for additional, more expansive discovery. In aid of such a discovery plan, the parties shall also discuss whether this action should be designated as complex under California Rules of Court, rules 3.400 and 3.403, and whether appointment of a discovery referee is appropriate.

The parties shall file and served a joint report (or separate reports if a joint report is not feasible) on their meet and confer efforts on or before October 12, 2026. The report(s) shall state matters of agreement and, where there is disagreement, each party's respective proposals for a discovery plan. If the parties file separate reports, each party may file a response to the other party's report on or before October 19, 2026.

Judges

Judge Colleen Sterne

Dept. 5 SB-Anacapa

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